Montgomery County District Court

Cause No. 2024-CV-0050

Brandon Allen, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	5-21-24
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant also asserts the following affirmative defenses.

First, Plaintiff's alleged injuries were not proximately caused by the incident in question. The impact between the vehicles was of low speed and minor force, and any condition Plaintiff now claims was pre-existing, degenerative, or unrelated to the collision.

Second, Plaintiff failed to exercise ordinary care to mitiagte damages, including by failing to follow reasonable medical advice and by incurring treatment that was unnecessary or unreasonable in cost. Any recovery must be reduced accordingly.

Third, to the extent Plaintiff's own negligence contributed to the occurrence, Defendant invokes the proportionate responsibility provisions of Chapter 33 of the Texas Civil Practice and Remedies Code. Any recovery must be reduced by Plaintiff's percentage of responsibility, and bars recovery if that percentage exceeds fifty percent.